

23AHCV00149 23AHCV00149

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-21

Motion: DEFENDANTS' MOTIONS TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION (SET TWO) AND SPECIAL INTERROGATORIES (SET TWO); REQUEST FOR SANCTIONS

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C08%2F21%2F2026

Source SHA-256: 7212a4bb7dd2a1d5da7cf931c0a9d1979f52e92cd3cfcdf0f41e2c5f0c29f69d

Case Number: 23AHCV00149 Hearing Date: August 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

EMPLOYEE
RETENTION BENEFITS, INC.,

Plaintiff(s),

vs.

ATLAS
VOLUNTARY BENEFITS FINANCIAL & INSURANCE SOLUTIONS, INC., et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23AHCV00149

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTIONS TO COMPEL FURTHER RESPONSES TO REQUEST
FOR PRODUCTION (SET TWO) AND SPECIAL INTERROGATORIES (SET TWO); REQUEST FOR
SANCTIONS

Dept.

3

8:30

a.m.

August

21, 2026

)

I.

INTRODUCTION

Defendants Atlas Voluntary Benefits

Financial & Insurance Solutions, Inc. ("Atlas") and Marisol Flores (collectively, "Defendants") move for orders compelling plaintiff Employee Retention Benefits, Inc. ("Plaintiff") to serve further responses to Special Interrogatories, Set Two and Requests for Production of Documents, Set Two. The Court previously asked the parties to provide a joint statement identifying and summarizing the requests at issue. Although the documents filed on August 14, 2026, are entitled "joint status conference report", the parties do not seem to have prepared them "jointly" because there are overlapping areas of agreement for certain discovery requests where Plaintiff "proposed" a resolution and Defendants state that they are "agreeable" to the proposal. If the report was actually the product of joint efforts, those statements should have been omitted as irrelevant. Therefore, the Court considers the motions moot with respect to the requests which appear to no longer be in dispute and does not include any discussion of them in this ruling.

II.

DISCUSSION

A.

Special
Interrogatories, Set Two

1.

ERB
Sales Personnel, Corporate Relationships, and ERB North America

SROG Nos. 96-97: GRANTED. Plaintiff to identify employees, agents, and independent contractors who materially participated in selling, enrolling, servicing, administering, or transitioning insurance policies sold to Los Angeles County employees who had their premiums deducted from their payroll by PPOA.

SROG Nos. 98, 114, 118: DENIED.

2.

Website/LinkedIn
Testimonial Witnesses

SROG Nos. 99-105: GRANTED.

3.

Union

Bank & Trust/Non-Medical Benefit Plan Trust

SROG

Nos. 106-113: GRANTED.

4.

Regulatory

Communications and Sydney Consulting/William Bade

SROG No. 115:

DENIED.

SROG Nos. 119-120. GRANTED in that Plaintiff's response in the joint statement includes "ERB customers who were LA County Employees with insurance premium payroll deductions previously made through PPOA."

5.

Employees/Percipient

Witnesses Identified in ERB Materials

SROG

Nos. 154-156: GRANTED.

6.

Employee

Complaints and ERB Financial Information

SROG No. 136: DENIED.

7.

Policy

Migration, Cancellation, Prior-Response Follow-Ups, and Commissions

SROG Nos. 137, 145-148, 153: GRANTED in that Plaintiff's response in the joint statement includes "ERB customers who were LA County Employees with insurance premium payroll deductions previously made through PPOA."

B.

Requests

for Production of Documents, Set Two

1.

Corporate,

Financial, Website, and Marketing Records

RFP Nos. 37-38, 41-42: DENIED. Defendants

fail to show good cause for the production of documents relating to ERB North American LLC, which is not a party to the case.

RFP Nos. 53-61: DENIED. The objection

that the requests are overbroad is SUSTAINED.

RFP Nos. 75-76: DENIED. No good cause

shown for documents about Plaintiff's portfolio of benefit and payroll services or marketing materials. Defendant vaguely references the importance of determining Plaintiff's reputation in the industry, but does not connect how marketing materials are relevant to the subject.

2.

PPOA

Business Communications, Cancellations, and Named Persons

RFP Nos. 43-45, 47-49, 62-73, 83,

85-144, 146-147: GRANTED. Plaintiff to provide further response agreeing to produce responsive documents for "ERB customers who had insurance premium payroll deductions made through PPOA", as opposed to ERB's offered limitation to materials only concerning PPOA.

RFP No. 77-82: GRANTED. Objections based

on relevance and scope are OVERRULED.

RFP Nos. 145, 154: GRANTED.

Communications between ERB and individuals relating to lapsed insurance policies and duplicate premium payroll deductions are relevant to reasons why customers would have been unhappy with ERB's services.

RFP No. 181: DENIED. No showing of good cause.

3.

Regulatory

Matters and 2020 Information-Theft Incident

RFP No. 46: GRANTED. Requests are appropriately narrowed to address the 2020 data breach incident.

4.

Other

Employee Associations and Third Parties

RFP No. 151: DENIED. Overbroad, request is not limited to a specific set of employees relevant to this action and broadly asks for documents regarding “any customer complaints or cancellation requests.”

RFP Nos. 182, 187: DENIED. No showing of good cause why other employee associations are relevant, i.e., whether former ERB members are part of these organizations.

RFP Nos. 152-153: GRANTED. Statement of inability to comply is not complete. (Code Civ. Proc., § 2031.230.)

RFP Nos. 184-185: GRANTED. Requests concern an entity identified as the “policyholder” for customers who allegedly requested refunds and cancellations due to Defendants’ conduct. organizations that former ERB customers are part of.

5.

Sydney

Consulting Group/William Bade

RFP Nos. 160-161: GRANTED, Plaintiff to produce ordinary-course consulting communications and documents concerning ERB customers who were LA County Employees with insurance premium payroll deductions previously made through PPOA, Atlas/Flores, policy migrations, cancellations/refunds, and damages.

6.

Carrier,
Policy, Contract, Compensation, and Indemnity Documents

RFP Nos. 52, 167, 183: GRANTED. Statement
of inability to comply is not complete. (Code Civ. Proc., § 2031.230.)

III.

CONCLUSION

Defendants' motions are GRANTED in
part. Further responses are due from Plaintiff within 20 days consistent with
the Court's ruling above.

Dated
this 21st
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this
tentative must send an email to the Court at indicating
intention to submit on the tentative as directed by the instructions provided
on the court website at www.lacourt.org. Please be advised that if you submit
on the tentative and elect not to appear at the hearing, the opposing party may
nevertheless appear at the hearing and argue the matter. Unless you receive a
submission from all other parties in the matter, you should assume that others
might appear at the hearing to argue. If the Court does not receive emails from
the parties indicating submission on this tentative ruling and there are no
appearances at the hearing, the Court may, at its discretion, adopt the
tentative as the final order or place the motion off calendar.